

appointment of a guardian ad litem, are examples of extrinsic mistake. (*In re Marriage of Varner* (1997) 55 Cal.App.4th 128, 140 (superseded by statute only in matters of family law).)

The only plausible theory for Defendant in the instant matter would be that the lack of actual notice, assuming it is true, resulted in excusable neglect, which qualifies as excusable mistake under Section 473(d), and thus permits Defendant to request a set aside at any time.

But this court finds such a construction of the statute to be incorrect. First, a lack of notice was certainly not one of the examples listed in *Verner*, but more importantly, to lend the statute Defendant's interpretation would be to make CCP 473.5 superfluous. What would be the necessity of CCP 473.5 and its time limitation when a defendant can simply make the identical claim at any time under CCP 473(d)? **This clearly was not the intent of the legislature and would contravene the canons of statutory interpretation.**

This court finds that a default judgment where there was no actual notice to the defendant, but the defendant failed to raise the claim within two years of the date of entry of default, does not qualify as a void judgment under Section 473(d).

Disposition

Defendant's Motion is denied.

Court to issue order.

3. 9:00 AM CASE NUMBER: L24-06648

CASE NAME: LVNV FUNDING LLC VS. GABRIELLA REYNA

***HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION FOR ENTERING JUDGMENT PURSUANT TO DEFENDANTS DEFAULT UNDER SETTLEMENT AND RELEASE AGREEMENT FILED BY PLTF. ON 04/07/2026**

FILED BY: LVNV FUNDING LLC

TENTATIVE RULING:

Background

Plaintiff filed, on 4/7/26, a Motion to enter judgment pursuant to stipulation, along with a Declaration. The Motion and accompanying documents were served by mail to the address where Plaintiff had served the Defendant with a copy of the Complaint in this matter.

The Motion is unopposed.

Analysis

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a

particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for judgment to be entered in the amount of \$4,312.68, less any credits for payments received.

Default defaulted on the payments.

Defendant made total payments in the amount of \$730.

Costs, an accounting of which was included in the Declaration, totaled \$324.98.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$3,907.63.

Plaintiff to file order on Motion, as well as submit Judgment.

4. 9:00 AM CASE NUMBER: L24-09079

CASE NAME: DISCOVER BANK VS. CIARA OKELLEY

***HEARING ON MOTION IN RE: TO ENTER JUDGMENT PURSUANT TO STIPULATION**

FILED BY:

TENTATIVE RULING:

Background

Plaintiff filed, 12/15/25, a Motion to enter judgment pursuant to stipulation. The Motion was originally scheduled for 4/28/26, but on that date, this court found that Plaintiff had not given proper notice to Defendant and continue the hearing for Plaintiff to provide notice.

The Motion is unopposed, yet, as of this writing, there is no evidence that Plaintiff has provided any notice of the Motion or hearing to Defendant.

Disposition

This is the second motion hearing setting for which Plaintiff has not provided notice.

This Motion will be dropped.

5. 9:00 AM CASE NUMBER: L24-10344

CASE NAME: JPMORGAN CHASE BANK N.A. VS. ROBERT ZAMBRANA

***HEARING ON MOTION IN RE: MOTION TO SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION FILED BY PLTF. ON 04/07/206**

FILED BY: JPMORGAN CHASE BANK N.A.

TENTATIVE RULING: